

		purported practices. (See <i>FilmOn.com Inc. v. DoubleVerify Inc.</i>, <i>supra</i>, 7 Cal.5th at p. 153-154 [concluding that private commercial speech between parties that is used for commercial purposes only and that “never entered the public sphere” did not qualify for protection]; <i>Murray v. Tran</i> (2020) 55 Cal.App.5th 10, 34 [statements regarding doctor’s competence made to a private group, which were not designed to be made public and were not to be disclosed to affected patients, did not meet the <i>FilmOn.com</i> criteria].) In short, the Cease-and-Desist Letter and Statements appear to be an effort to gather ammunition for another round of a private controversy rather than an attempt to exercise rights to petition or free speech. (See <i>Weinberg v. Feisel</i>, <i>supra</i>, 110 Cal.App.4th at pp. 1132-1133.) Thus, the statements in question were not made in furtherance of the exercise of the right to petition or free speech relating to a public issue or an issue of public interest. Defendants fail to show that the challenged claims arise from protected activity. Thus, the court need not proceed to the second step of the anti-SLAPP analysis and must deny the motion. Plaintiff shall give notice of this ruling.
7	Kameli vs. English 30-2023-01304346	<u>Motion to Compel Discovery</u> Pursuant to the Notice of Withdrawal of Motion to Compel Further Responses to Form Interrogatories filed September 18, 2023, (ROA #68), this matter is taken OFF CALENDAR.
8	Lowther vs. Pavilion Park Senior 1 Housing Partners 30-2022-01267301	<u>Motions to Compel Discovery</u> Defendant Pavilion Park Senior 1 Housing Partners’ Motion to Compel Plaintiff to Respond to Defendant Pavilion Park Senior 1 Housing Partners’s Form Interrogatories – General, Set One is GRANTED. Defendant Pavilion Park Senior 1 Housing Partners’ Motion to Compel Plaintiff to Respond to Defendant’s Special Interrogatories, Set One is GRANTED.